

Key Articles of the Constitution of Pakistan

An Article-by-Article Guide to the Structure, Governance, Rights, and Judicial Provisions of the 1973 Constitution

Pakistan Legal Reference Series

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How the Constitution Is Organized

The Constitution of the Islamic Republic of Pakistan, 1973 contains **12 Parts**, divided into Chapters, comprising (after all amendments through the 27th Amendment)

roughly 280+ Articles, plus **7 Schedules**. This guide walks through each Part and highlights the specific Articles most frequently invoked in legal practice.

Part	Subject	Article Range (approx.)
I	Introductory (definitions, Islam as State religion, territories of Pakistan)	1-6
II	Fundamental Rights and Principles of Policy	7-40
III	The Federation of Pakistan (President, Majlis-e-Shoora/Parliament, Federal Government)	41-100
IV	Provinces (Governor, Provincial Assembly, Provincial Government)	101-140-A
V	Relations Between Federation and Provinces (distribution of legislative powers, special provisions)	141-172
VI	Finance, Property, Contracts, and Suits	160-174
VII	The Judicature (Supreme Court, Federal Constitutional Court, High Courts, Federal Shariat Court, subordinate courts)	175-212
VIII	Elections (Election Commission of Pakistan)	213-226
IX	Islamic Provisions (Islamic Council, Federal Shariat Court references)	227-231
X	Emergency Provisions	232-237
XI	Amendment of the Constitution	238-239
XII	Miscellaneous (services, armed forces, transitional provisions)	240-280

Part I — Introductory

- **Article 1:** Pakistan is a Federal Republic, comprising the four Provinces (Punjab, Sindh, Khyber Pakhtunkhwa, Balochistan), the Islamabad Capital Territory, and

such states/territories as are or may be included.

- **Article 2:** Islam is the State religion of Pakistan.
- **Article 2-A:** Incorporates the **Objectives Resolution** of 1949 as a substantive part of the Constitution — affirming sovereignty belongs to Allah alone, and that Pakistan shall be a democratic State based on Islamic principles of equality, tolerance, and social justice.
- **Article 4:** Guarantees every citizen the **right to be dealt with in accordance with law** — no action detrimental to life, liberty, body, reputation, or property except in accordance with law.

Part II — Fundamental Rights and Principles of Policy

Chapter 1 (Articles 8–28) sets out enforceable **Fundamental Rights** (see the Criminal/Business/Rights document in this series for the full table).

Chapter 2 (Articles 29–40) sets out **Principles of Policy** — directive, non-justiciable goals for the State, including:

- **Article 37:** Promotion of social justice and eradication of social evils (this article specifically directs the State to eliminate illiteracy, ensure inexpensive/speedy justice, and prevent prostitution, gambling, and consumption of alcoholic liquor other than for religious/medicinal purposes).
- **Article 38:** Promotion of social and economic well-being of the people, reduction of income/wealth disparity, and (as amended in 2024) the elimination of *riba* by 1 January 2028.
- **Article 40:** Strengthening bonds with the Muslim world and promoting international peace.

Part III — The Federation of Pakistan

- **Article 41:** The President is Head of State, elected by an Electoral College of Parliament and Provincial Assemblies for a 5-year term.
- **Article 50–89:** Structure of **Majlis-e-Shoora (Parliament)** — the National Assembly (directly elected, 5-year term) and the Senate (indirectly elected by Provincial Assemblies, providing equal provincial representation regardless of population).
- **Article 63:** Grounds for **disqualification** of a member of Parliament, including conviction for a crime involving moral turpitude, being of unsound mind, defaulting on loans, or (63(1)(g)) propagating opinions prejudicial to the ideology or integrity of Pakistan.
- **Article 90–91:** The Cabinet, headed by the Prime Minister, exercises executive authority; the Prime Minister is elected by the National Assembly and is answerable to it via a vote of confidence/no-confidence.
- **Article 245:** The Armed Forces act “in aid of civil power” when directed by the Federal Government.

Part IV — Provinces

Mirrors the federal structure at the provincial level — Governor (Article 101), Provincial Assembly (Article 106), Provincial Cabinet led by the Chief Minister (Article 130).

Part V — Federation-Province Relations

- **Article 142:** Distribution of legislative subjects — since the 18th Amendment abolished the Concurrent List, Parliament legislates on the **Federal Legislative List**, while all residual subjects fall to the **Provinces**.
- **Article 149:** Federal Government's directions to a Province in specific circumstances (e.g., ensuring compliance with federal laws, protecting Pakistan against external danger).

Part VI — Finance, Property, Contracts and Suits

- **Article 160:** The **National Finance Commission (NFC) Award** — distributes tax revenue between the Federation and Provinces.
- **Article 173:** Government's capacity to acquire, hold, and dispose of property, and to enter into contracts.

Part VII — The Judiciary

- **Article 175:** Establishes the Supreme Court, High Courts, and (since the 27th Amendment) the **Federal Constitutional Court**, plus such other courts as may be established by law; also guarantees separation of the judiciary from the executive.
- **Article 175-A:** Judicial appointments process via the **Judicial Commission of Pakistan** (composition significantly altered by the 26th Amendment to include parliamentary representation).
- **Article 184:** Original jurisdiction of the Supreme Court, including (184(3)) matters of public importance involving enforcement of fundamental rights — now exercised through Constitutional Benches and subject to the 26th Amendment's removal of suo motu initiation.
- **Article 199:** High Courts' writ jurisdiction (habeas corpus, mandamus, certiorari, prohibition, quo warranto).
- **Article 203:** Federal Shariat Court — examines whether any law is repugnant to the Injunctions of Islam.
- **Article 209:** Supreme Judicial Council — the body that investigates and can recommend removal of judges for misconduct or incapacity.

Part VIII — Elections

- **Article 218-219:** Establishes the **Election Commission of Pakistan (ECP)**, an independent body responsible for organizing and conducting elections and preparing electoral rolls.
- **Article 224:** Timelines for holding general elections — within 60 days of the National Assembly’s term expiring normally, or 90 days if dissolved earlier.

Part IX — Islamic Provisions

- **Article 227:** All existing laws shall be brought into conformity with the Injunctions of Islam, and no law shall be enacted which is repugnant to such Injunctions.
- **Article 228-231:** Composition and function of the **Council of Islamic Ideology**, an advisory body that reviews laws for Islamic conformity.

Part X — Emergency Provisions

- **Article 232:** Proclamation of emergency due to war, internal disturbance, or threat to Pakistan’s security.
- **Article 233:** Certain fundamental rights may be suspended during a proclaimed emergency, subject to constitutional limits.

Part XI — Amendment of the Constitution

- **Articles 238-239:** The amendment procedure discussed in detail in the companion “Constitutional Amendments” document — two-thirds majority in each House, presidential assent, and (per Article 239(5)-(6)) immunity of the resulting amendment from judicial challenge “on any ground whatsoever.”

Part XII — Miscellaneous

- **Article 243:** Command of the Armed Forces — significantly restructured by the 27th Amendment (2025) to create the Chief of Defence Forces and Commander, National Strategic Command, and to grant lifetime rank/immunity to five-star officers.
- **Article 245:** Functions of the Armed Forces.
- **Article 260:** The definitions clause — notably defines “Muslim” and, per the 2nd Amendment, defines who is **not** a Muslim for constitutional purposes (Ahmadis/Qadianis).
- **Article 270-A (historical):** Validated actions and laws made during the 1977-1985 martial-law period, inserted by the 8th Amendment.

Schedules

Schedule	Content
First	Laws exempted from being void for inconsistency with fundamental rights (e.g., certain preventive-detention and specific historical laws)
Second	(Repealed/spent — related to disqualification for defection under earlier text)
Third	Oaths of office for the President, Prime Minister, Ministers, judges, etc.
Fourth	Federal Legislative List (subjects on which only Parliament may legislate)
Fifth	Salaries, allowances, and privileges of the President and judges
Sixth	Laws not subject to alteration by ordinary legislative competence limits (protected laws)
Seventh	<i>(Historical — related to matters now largely superseded by amendment)</i>

Disclaimer: Article numbering and content have shifted meaningfully across 27 amendments (particularly 8th, 13th, 18th, 26th, and 27th). Always verify the current, Gazette-published text of the Constitution — available from the National Assembly of Pakistan’s official website — before relying on any specific Article for a legal matter.